

Establishment Inspection Report

Silq Technologies Corporation
Sunny Isles Beach, FL 33160-4232

FEI: **3014650073**
EI Start: 10/14/2025
EI End: 10/16/2025

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SUMMARY

This is a pre-announced, risk-based, level-2 surveillance inspection of a class II medical device manufacturer. It was conducted in accordance with the Center for Devices and Radiological Health (CDRH) offices workplan for FY-25, Operation Identification #326708. This inspection was conducted in accordance with CP 7382.845, Inspection of Medical Device Manufacturers under Product Assignment Code (PAC) 81011 (MDR Practices), 82016 (Unique Device Identifier), and 82845B (Risk Based Work Plan Inspections).

The previous inspection, conducted from January 04-05, 2023, was a Level II, comprehensive, initial inspection. The inspection covered management controls, design controls, production and process controls, corrective and preventive actions, and other ancillary subsystems. A FORM FDA 483, Inspectional Observations, was issued to Mr. Tavi Cruz-Uribe, VP of Quality Assurance, citing the following: 1) Management with executive responsibility has not reviewed the suitability and effectiveness of the quality system at defined intervals; and 2) Procedures for receiving, reviewing, and evaluating complaints by a formally designated unit have not been adequately established. Mr. Cruz-Uribe annotated those observations as “Promise to Correct”.

Silq Technologies Corporation is a manufacturer of a Class II medical device marketed within the United States. The 2-Way ClearTract Catheter, is a Class II, urinary catheter, marketed under 510(k) number: K192034, Product Code EZL and Regulation Number 21 CFR 876.5130. The current Level II inspection was a routine comprehensive inspection. All four major subsystems (Management Controls, Design Controls, Production and Process Controls, and Corrective and Preventive Actions) and firm profile classes MIS were covered. At the end of this inspection, a FORM FDA 483, Inspectional Observations, was issued to Mr. Dominic Vern Sharma, Chief Executive Officer of Silq

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Technology Corporation on 10/16/2025 for: 1) An MDR report was not submitted within 30 days of receiving or otherwise becoming aware of information that reasonably suggests that a marketed device has malfunctioned and would be likely to cause or contribute to a death or serious injury if the malfunction were to recur; and 2) Procedures for design change have not been adequately established. Mr. Sharma annotated all investigational Observations as “Promise to Correct”.

The firm’s management was advised that the conditions listed in the Form FDA 483 or discussed during the closing meeting may after further review by the FDA be considered violations of the Act and that legal sanctions including a warning letter, regulatory meeting, seizure, injunction, civil money penalties, and prosecution are available to FDA. I informed Mr. Sharma that it is the firm’s responsibility to comply with the FD&C Act and Federal Regulations. Mr. Sharma confirmed he understood all observations and expressed the intent to notify FDA/OMDRHI Division 2 in writing of the corrections within 15 business days of the inspection and implement all corrections.

No refusals were encountered. There have been no recalls. No samples were collected.

ADMINISTRATIVE DATA

Inspected firm: Silq Technologies Corporation
Location: 323 Sunny Isles Blvd Fl 7
Sunny Isles Beach, FL 33160-4232
Phone: 1-424-309-8523
FAX: N/A
Mailing address: 323 Sunny Isles Blvd Fl 7
Sunny Isles Beach, FL 33160-4232
Email address: info@silq.tech
Website: www.silq.tech
Dates of inspection: 10/14/2025-10/16/2025
Days in the facility: 3
Participants: **Marvin A Marengo, Investigator**

I called the firm on 10/09/2025, and preannounced the inspection to Mr. Dominic Vern Sharma, Chief Executive Officer of Silq Technology Corporation. I informed him the inspection start date of Tuesday, October 14, 2025. He requested to reschedule the inspection for a later date; however, I informed him I was not able to accommodate his request. He did not express any objections to the inspection. Upon my arrival on 10/14/2025, I presented my credentials to Mr. Dominic Vern Sharma, Chief Executive Officer. Therefore, I issued him a FORM FDA 482 Notice of Inspection (**Attachment 1**). In addition to Mr. Sharma, Mr. Ethan A. Rao, Director of Research and Development and Quality Assurance, was present at the inspection opening meeting. Throughout this inspection, Mr. Ethan A. Rao, Director of Research and Development and Quality Assurance, provided me with information and exhibits for this report. A FORM FDA 483, Inspectional

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Observation, was issued to Mr. Dominic Vern Sharma on 10/16/2025 whom annotated all Investigational Observations as “Promised to correct” (**Attachment 2**). I provided him the (most recent) FDA/OMDRHI Division II Contact Information Handout and explained how to submit a response.

Silq Technologies Corporation headquarters is located at 323 Sunny Isles Blvd FL 7, Sunny Isles Beach, FL 33160-4232. This facility is a shared office space in a Regus establishment in which the firm does have a permanent office space and has the option to reserve a conference room to use when necessary. The firm’s office hours are Monday-Friday, 9:00 am to 5:00 pm. Mr. Sharma explained the firm has employees around the county and they collaborate virtually. Furthermore, Mr. Sharma disclosed they have another facility located at 311 Otterson Dr, Chico, CA 95928 where the firm manufactures their propriety suspension that is applied to their ClearTract catheters. **See Exhibit 1** for a photocopy of the facility site map at 311 Otterson Dr, Chico, CA 95928. There were no other government agencies present at the inspection.

Official Correspondence between Mr. Dominic Vern Sharma, Chief Executive Officer of Silq Technology Corporation, and FDA, including FMD-145 copy should be delivered to the following address:

ATTN: Dominic Vern Sharma, Chief Executive Officer
Silq Technologies Corporation
323 Sunny Isles Blvd Fl 7
Sunny Isles Beach, FL 33160-4232
Phone: 1- 818-399-5150
vernes@silq.tech

HISTORY

Silq Technologies Corporation was last inspected on 01/04-05/2025. The facilities headquarters location at 323 Sunny Isles Blvd FL 7, Sunny Isles Beach, FL 33160-4232, remains unchanged. The firm rents and occupies a single office in "Regus", which is an office that rents out space to various companies. The firm’s hours of operation remain Monday-Friday, 9:00 am to 5:00 pm. Mr. Sharma disclosed one (1) employee, Ms. Corina Spiridon, Administrative Director, is always located at the office while all other employees are working remote. As per Mr. Sharma, code 2 best describes the firm’s 2024 annual gross income. Silq Technologies Corporation is registered as a foreign profit corporation in the state of Florida. The firm FDA registration is up to date. The firm's history is documented in prior inspection reports and will not be repeated here.

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INDIVIDUAL RESPONSIBILITY AND PERSONS INTERVIEWED

The following Individual documented in the last FDA Establishment Inspection Report is no longer with the firm: Tavi Cruz-Uribe, VP of Quality Assurance. **Exhibit 2** is a copy of the firm's organization chart.

Mr. Ethan A. Rao, Director of Research and Development and Quality Assurance:

In December 2016, Mr. Ethan A. Rao was hired as a Research Scientist. In 2020, he was promoted to Director of Research and Development, and in July 2025, he was promoted to his current position of Director of Research and Development and Quality Assurance. He reports directly to Brian McVerry, Chief Technology Officer. The following personnel report directly to him: Ms. Na He, Research Scientist. Mr. Rao states that his responsibilities include overseeing ongoing research and development projects both internal and with other companies they are working with to see if their suspension will work with their products. Additionally, he maintains the quality management system and develops improvements to the quality management system and provides support in the firm's clinical trials.

COMPLAINTS

Prior to the start of the inspection, I did not observe any complaints related to Silq Technologies Corporation in the internal FDA database. I reviewed the firm's Complaint Handling Procedure, "Product Complaint System SOP" QM.SQL021, Revision D, Effective 02/02/2024. Mr. Rao disclosed the firm logs all customer complaints in a "Complaint Log". Upon request, Mr. Rao furnished the "Complaint Log" of all complaints received since January 2023. The complaint log presented contained nine (9) complaints, of which I reviewed all nine. Discrepancies observed with the complaints reviewed are described in greater detail under **Observation 1** in the Objectable Conditions and Management's response section of this report.

OBJECTIONABLE CONDITIONS AND MANAGEMENT'S RESPONSE**Observations listed on form FDA 483****OBSERVATION 1**

An MDR report was not submitted within 30 days of receiving or otherwise becoming aware of information that reasonably suggests that a marketed device has malfunctioned and would be likely to cause or contribute to a death or serious injury if the malfunction were to recur.

Specifically,

Your firm failed to submit a Medical Device Report (MDR) within the required 30-day timeframe after becoming aware of a device malfunction involving your Urological Catheter, a Class II medical device. This malfunction necessitated medical intervention for the patient. According to your internal procedure "Medical Device Reporting" (QM.SLQ022, Revision A, Effective Date: September 25, 2020), Section 6.5 MDR Reporting Timeframes specifies that reports are "due within

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30 calendar days of becoming aware of information that reasonably suggests that the device may have caused or contributed to a death, serious injury, or reportable malfunction." Since January 2023, your firm has received at least two (2) complaints documenting device malfunctions that required patients to seek medical intervention, yet the corresponding MDR submissions were not filed within the regulatory timeframe.

Annotation: Promised to correct

Reference: 21 CFR 803.50(a)(2)

Supporting Evidence and Relevance:

The firm's internal procedure, "Medical Device Reporting" (QM.SLQ022, Revision A, Effective Date: September 25, 2020), Section 6.5 MDR Reporting Timeframes specifies that reports are "due within 30 calendar days of becoming aware of information that reasonably suggests that the device may have caused or contributed to a death, serious injury, or reportable malfunction" (**Exhibit 3**). Silq Technologies Corporation received complaint 2023002 on May 15, 2025, regarding an incident that occurred on the same date. The complaint stated: "After one day of use, a patient's catheter balloon deflated at home which caused the catheter to fall out of the patient. The patient returned to the ER the following day and had a replacement catheter inserted" (**Exhibit 4**). Silq Technologies Corporation received complaint 2023004 on December 05, 2025, regarding an incident that occurred on the same date. The complaint stated: "The patient/subject was enrolled into the Silq STC-001 study on 04 Dec 2023 and a Silq catheter was implanted into the patient with no incident. The patient returned to the VA on 05 Dec 2023 complaining of pain and discomfort. The attending nurse tried to deflate the balloon to check the positioning of the catheter and the balloon did not have any water in it. The nurse tried to add water to the balloon, however, all of the water from the balloon ran immediately out of the urethra along the catheter. The nurse then removed the Silq catheter and replaced with a non-study catheter. Upon removal of the Silq catheter, the nurse noted that the balloon was ruptured" (**Exhibit 5**).

Discussion with Management:

I asked Mr. Sharma and Mr. Rao why both complaints were not treated as MDR's and reported. Mr. Rao explained that both situations are common events that occur with catheters and that the events did not lead to death or serious injury. I reviewed 21 CFR 803.50 with both Mr. Sharma and Mr. Rao. I explained that the catheter was used for a medical purpose and that the device malfunctioned. Additionally, both complaints involved malfunctions that required patients to seek medical intervention, which could have resulted in serious injury if such intervention had not been obtained.

Mr. Sharam stated he understands and agree with the observation. He expressed his commitment to ensure the firm will make the necessary changes to comply with the MDR regulatory requirements. Mr. Sharma annotated this observation as "Promise to Correct".

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OBSERVATION 2

Procedures for design change have not been adequately established.

Specifically,

Since November 2024, your firm has distributed approximately 280 urological catheters (Class II medical devices for urinary tract drainage) without obtaining proper approval for a design change. This distribution occurred following an unauthorized design change implemented by your contract manufacturer. On November 6, 2024, your contract manufacturer informed your firm via written correspondence received from their contract manufacturer that they "implemented an improved valve that ensures secure placement and prevents dislodgement." Despite receiving this notification, your firm proceeded to distribute the modified devices without completing the required regulatory processes. Per your internal procedure "Design Control Program" (QM.SLQ004, Revision A, effective September 25, 2020), your firm failed to approve a design change prior to its implementation and distribution.

Annotation: Promised to correct

Reference: 21 CFR 820.30(i)

Supporting Evidence and Relevance:

The firm's internal procedure, "Design Control Program" (QM.SLQ004, Revision A, effective September 25, 2020), Section 16 Design Changes states: "In cases where major changes to a product line are made, an updated or supplemental Design Project Scope Form (FM1-QM.SLQ004) is to be completed to determine the extent of design control activities required" (**Exhibit 6**). On November 6, 2024, your contract manufacturer notified your firm via letter that they "implemented an improved valve that ensures secure placement and prevents dislodgement" (**Exhibit 7**). The firm failed to provide documentation demonstrating design change approval for the urological catheter valve prior to implementation, as well as the required design control activities conducted before distributing the modified devices into U.S. commerce, as specified in your design control procedures. Since November 2024, the firm has distributed approximately 280 urological catheters (Class II medical devices for urinary tract drainage) without obtaining proper approval for a design change (**Exhibit 8**).

Discussion with Management:

I asked both Mr. Sharma and Mr. Rao why the device underwent a design change without following their procedures. Mr. Rao explained that the catheter manufacturer made the change independently in response to complaint 2024003, which stated: "When the nurse was filling the balloon with saline, the plastic end of the tube where the syringe is inserted came off. As a result, she was unable to adequately fill the balloon and we had to use another catheter" (**Exhibit 7**). Neither Mr. Rao nor Mr. Sharma could explain the catheter check valve design change implemented by the catheter manufacturer, Ningbo Yingmed Medical Instruments Co., Ltd. I reviewed 21 CFR 820.30 with both Mr. Sharma and Mr. Rao. I explained to Mr. Sharma that they are responsible for the catheter cleared in their 510(k) K192034 and must conform to the regulations. I explained that making design

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changes without considering the various risks associated with the change, such as impacts on sterilization and performance, can potentially compromise patient safety and device efficacy.

Mr. Sharam stated he understands and agree with the observation. He expressed his commitment to ensure the firm will make the necessary changes to comply with the regulatory requirements. Mr. Sharma annotated this observation as "Promise to Correct".

REFUSALS

No refusals were encountered.

GENERAL DISCUSSION WITH MANAGEMENT

The closeout meeting was conducted on October 14, 2025, with the following individuals present: Mr. Dominic Vern Sharma, Chief Executive Officer; and Mr. Ethan A. Rao, Director of Research and Development and Quality Assurance.

I warned Mr. Sharma. that the conditions listed in the FORM FDA 483 or discussed during the inspection may after further review by the agency be considered to be violations of the Act and that legal sanctions including seizure, injunction, civil money penalties, and prosecution are available to FDA if establishments do not voluntarily correct serious conditions. I informed Mr. Sharma that it is the firm's responsibility to comply with the FD&C Act and Federal Regulations. I advised him that if FDA receives an adequate response to the FDA 483, or other objectionable conditions, within 15 business days of the end date of the inspection, it may impact FDA's determination of the need for subsequent action. I provided him the (most recent) OMDRHI Contact Information Handout and explained how to submit a response. Mr. Sharma confirmed he understood all observations and expressed the intent to notify FDA/OMDRHI Division 2 in writing of the corrections within 15 business days of the inspection and implement all corrections. I encouraged him to submit evidence with his responses and provide updates as needed.

SAMPLES COLLECTED

No Samples were collected.

VOLUNTARY CORRECTIONS

The previous inspection, conducted from January 04-05, 2023, resulted in two (2) Observations. Mr. Octavio Cruz-Uribe, VP of Quality Assurance, acknowledged understanding the citations and promised to correct them. Mr. Cruz-Uribe committed to implementing corrections and agreed to provide a written response to the issued FORM FDA 483 within 15 business days. FDA did not take any official action for these Observations. There were no voluntary destructions, Class I or Class II recalls, or similar actions taken by the firm since the prior inspection.

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Prior Observation 1— Management with executive responsibility has not reviewed the suitability and effectiveness of the quality system at defined intervals. Specifically, the firm's management review procedure QM.SL018 Rev A states that reviews are conducted annually. The firm conducted a management review in 2022 but did not conduct any reviews in 2021. Mr. Octavio Cruz-Uribe, Vice President of Quality Assurance of Silq Technologies Corporation provided a response to this observation on January 18, 2025, outlining the firm's completed and planned corrective actions (**Exhibit 9**). The deficiency was verified corrected during my inspection.

Prior Observation 2— Procedures for receiving, reviewing, and evaluating complaints by a formally designated unit have not been adequately established. Specifically, the firm's complaint procedure QM.SLQ021 Rev B does not indicate that all complaint must be investigated in a timely manner. Mr. Octavio Cruz-Uribe, Vice President of Quality Assurance of Silq Technologies Corporation provided a response to this observation on January 18, 2025, outlining the firm's completed and planned corrective actions (**Exhibit 9**). The deficiency was verified corrected during my inspection.

EXHIBITS COLLECTED

- 1 Chico CA Facility Layout, 1 page
- 2 Organization Chart, 1 page
- 3 QM.SLQ022 A Medical Device Reporting, 12 pages
- 4 Complaint 2023002, 6 pages
- 5 Complaint 2023004, 9 pages
- 6 QM.SLQ004 A Design Control Program SOP, 13 pages
- 7 Complaint 2024003, 8 pages
- 8 Distribution record, 1 page
- 9 Silq Technologies Corp Response to 2023 FDA-283, 14 pages

ATTACHMENTS

- 1 Silq Technologies FORM FDA 482(Mr. Sharma), 3 pages
- 2 Issued 483, 4 pages

MARVIN A.
MARENCO -S
Medical Device Investigator

Digitally signed by
MARVIN A. MARENCO -
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Date: 2025.11.07
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